



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 8, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202102464 regarding Police Officer Justin Venezia, Tax No. [REDACTED] (DADS No. 2022-24987), Police Officer Josue Batista, Tax No. [REDACTED] (DADS No. 2022-24991) and Sergeant Robert Zeitoun, Tax No. [REDACTED] (DADS No. 2022-24989).

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter, including all relevant video evidence. The Police Commissioner agrees with the CCRB's findings and penalty recommendation against Police Officer Batista. However, while the Police Commissioner agrees with the findings of the CCRB regarding Sergeant Zeitoun and Police Officer Venezia, the Police Commissioner disagrees with the penalty recommendations.

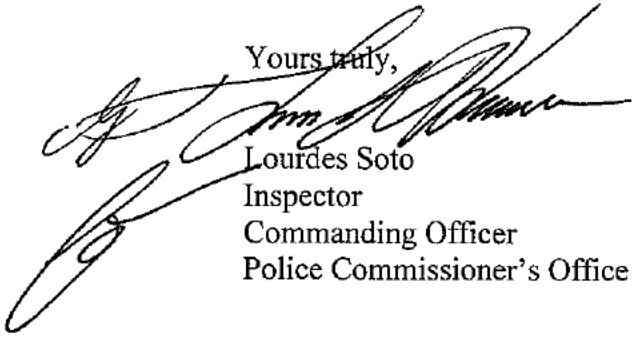
The Police Commissioner acknowledges that the decision to utilize or threaten to utilize a CEW is subjective and will differ based on the particular facts of any encounter. In this incident, based on video evidence, the continued threat of using and pointing the CEW at the individual for an extended period appeared unwarranted. However, there was an acknowledged level of dangerousness at the very beginning of the interaction when the individual was holding both a bat and broom that must be considered and mitigate the disciplinary penalty.

Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Venezia and Sergeant Zeitoun be issued a Schedule "A" Command Discipline for the violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Abuse of Authority – Threat of Force).

COURTESY • PROFESSIONALISM • RESPECT

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'Lourdes Soto', is written over the typed name and title.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office